

23SMCV05788 23SMCV05788

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-04

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Case Number: 23SMCV05788 Hearing Date: August 4, 2026 Dept: M

CASE NAME: Daly v. Wintage at 425 Broadway Apartments, et al.

CASE NO.: 23SMCV05788

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 8/4/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

ANALYSIS

Defendant Equity Residential

Management LLC moves to compel Plaintiff Star Daly's verified responses, without objections, to Requests for Production of Documents, Set One; Form Interrogatories, Set One; and Special Interrogatories, Set One. Defendant requests sanctions of \$1,920.00 per motion against Plaintiff and her counsel of record.

Defendant demonstrates that it propounded written discovery upon Plaintiff, including the subject Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, via mail on February 10, 2026. (Willis Decl., ¶ 1, Ex. A.) On March 15, 2026, Defendant granted Plaintiff an extension through April 16, 2026, to provide verified responses. (Id., ¶ 3, Ex. B.) Plaintiff failed to serve any responses by the extended deadline, or at all. (Id., ¶¶ 4-6.)

Accordingly, the motions are GRANTED. Verified responses are due, without objection, within 10 days. Sanctions are imposed in the reduced total amount of \$2,240.00 against Plaintiff and Plaintiff's counsel of record. Sanctions are payable to Defendant Equity's counsel of record within 30 days.